



SINGLE SOURCE JUSTIFICATION NOT EXCEEDING THE SIMPLIFIED ACQUISITION THRESHOLD

SECTION 1: IDENTIFICATION OF THE AGENCY AND THE CONTRACTING ACTIVITY

Department of State
Contracting Activity

☒ Overseas Post PANAMA

Requiring Activity

Senior High-Level USG

SECTION 2: NATURE AND/OR DESCRIPTION OF THE ACTION BEING APPROVED

Approval is requested to award on a sole source basis to Intercontinental Miramar Hotel located in Balboa Ave. in Panama City, Panama for the services described in Section 3 on behalf of the Requiring Activity.

SECTION 3: DESCRIPTION OF SUPPLIES/SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS

The requirement is to provide the acquisition of hotel rooms at Intercontinental Miramar Hotel located in Balboa Avenue. The estimated value for the entire period of performance is \$45,000.00, including options. The services required are hotel rooms for the Senior High-Level USG Principal traveling with a delegation inclusive of security, communications, logistics and operations support elements. The acquisition will allow the Office of Senior High-Level USG Office to accomplish U.S. Government priority objectives.

SECTION 4: IDENTIFICATION OF THE STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION

In accordance with Federal Acquisition Regulation (FAR) 13.106-1(b)(1), the Contracting Officer has deemed only one source reasonably available based on the following:

- ☒ Urgency
- ☐ Exclusive licensing agreements
- ☐ Brand-name
- ☐ Industrial mobilization
- ☐ Other

SECTION 5: DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED

Security concerns prohibit sufficient advanced notification of VIP travel to allow time to conduct full and open competition. The Department of State can only communicate with the staff at Posts abroad when authorization is given due to security concerns. Staff overseas have extremely short turnaround times when



authorization is granted for negotiations to commence and site selections to be finalized with both local vendors and Posts before the Senior High Level USG VIP visit occurs. Security and logistical teams make determinations during the site survey as to which hotels are the most suitable for the Senior High-Level USG Principal and traveling staff to remain overnight. Consideration of the Senior High Level USG Principal and the location are taken into consideration as a determining factor.

The types of events, meetings, locations, and availability of venues to support the Senior High-Level USG Principal and the delegation are often times designated by the host countries.

Unique requirements for communications support place severe time limitations and are a determining factor in the selection process as well as its augmentation capacity to the unique requirements necessary to support certain Senior High Level USG Principals.

Many of the arrangements for hotel and transportation are often not confirmed until just before the actual visit. In addition to supporting a large delegation within a short time frame, last minute and frequent changes of itineraries for supporting personnel often result in significant changes in how Posts work with vendors. With few exceptions, contracts may not be signed until the Department of State (Post) has written confirmation from all supporting agencies, which enables collection of funds from said agencies in the event of cancellation. This results in an unusual and compelling urgency in accordance with 41 U.S.C. 253 (c) (2), FAR 13.106-1(b)(1).

These unique Senior High Level USG VIP travel requirements result in a single or very limited number of responsible sources with no other supplies or services capable of satisfying agency requirements.

Security and logistics are the Department of State's primary considerations when procuring hotel rooms. The Department of State must be able to provide a safe and secure environment for USG Principal's visiting posts. Frequently, VIP visits are not announced or confirmed with sufficient time to conduct a competition, creating an urgent and compelling need. At other times, the security requirements and/or requirements of the host country government limit the acquisition to one or a small number of predetermined hotels.

☒ The VIP visit information was not available in sufficient time thereby creating an urgent and compelling need.

☒ This Hotel was picked by Senior High Level USG travel coordinator and Security, this single source per their direction.

☒ The proposed contractor has the following unique qualifications which meet the Department of State's security and logistical requirements. (Check all that apply)

☒ Location (able to secure building, travel route; distance to and from event)

☒ Size and number of rooms (able to house everyone in one hotel)

☐ Conference facilities (adequate space for meetings, press conferences)

☒ Communications (able to install equipment/lines, command center)

☒ Accommodating to security needs, The main VIP member will also be staying at this hotel.

Due to urgency and exception in FAR 25.401(a)(5) this solicitation cannot be posted but the Single Source Justification will be published in SAM.



SECTION 6. DETERMINATION BY THE CONTRACTING OFFICER THAT THE ANTICIPATED COST TO THE GOVERNMENT IS FAIR AND REASONABLE

By signing the justification, the Contracting Officer makes a determination that the price to the Government is anticipated to be fair and reasonable.

Additional hotels were reviewed: Hotel Hilton, JW Marriott, and Sheraton Hotel, but were not adequate for this requirement due to the following: no availability, distance from Panama Pacifico Airport, and/or security concerns.

Type of Room	InterContinental Miramar	JW Marriott	Hilton	Per Diem
Deluxe Room	\$165.00/night	\$157/night	\$169.00/night	\$173.00/night